

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Team # 5	CCRB Case #: 201301768	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/23/2013 11:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/23/2014	Precinct: 44
Date/Time CV Reported Wed, 01/23/2013 11:17 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/15/2013 8:47 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexis Dejesus	01421	946903	044 PCT
2. POM Michael Smith	29038	942823	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Smith	Force: PO Michael Smith used physical force against § 87(2)(b)	A . Complainant Unavailable
B . POM Alexis Dejesus	Force: PO Alexis Dejesus used physical force against § 87(2)(b)	B . Complainant Unavailable

Case Summary

On January 25, 2013, § 87(2)(b) called IAB and filed the following complaint. This complaint was received at the CCRB on March 15, 2013, via referral number 13-3684. On January 23, 2013 at 11:00 a.m., § 87(2)(b)'s son § 87(2)(b) was arrested outside of her apartment for criminal possession of marijuana and for resisting arrest by PO Alexis Dejesus and PO Michael Smith of the 44th Precinct. The officers pushed § 87(2)(b) after arresting her son.

§ 87(2)(g)

The IAB referral report did not include § 87(2)(b)'s phone number. A call to IAB confirmed that a phone number for § 87(2)(b) was not available. A Lexis Nexis search did not yield any phone numbers for § 87(2)(b)'s address. Call request letters were sent to § 87(2)(b) on March 18 and March 29, 2013. Neither letter has been returned undelivered by the US Postal Service. A search of the Department of Corrections' inmate locator indicated that § 87(2)(b) is not incarcerated. It is therefore recommended that this complaint be closed as **Complainant Unavailable**.

Team: 5

Investigator:	<u>Simon Wang</u>	<u>04/01/13</u>
	Signature	Date

Supervisor:		
	Title/Signature	Date

Reviewer:		
	Title/Signature	Date

Reviewer:		
	Title/Signature	Date